

A.18

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A.18: Death in Service Policy



Compassion



Accountability



Respect



Integrity



Courage

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1. Introduction

Death in service is thankfully a rare occurrence but when it does happen it can cause uncertainty regarding how to deal with such a sensitive issue. In the unfortunate event of a death in service, the Trust recognises the need to balance sensitivity with the practical need to administer pay arrangements during a difficult and emotional time for the next of kin/executor of estate.

Equally, it is acknowledged that the death of a colleague has a major impact on the team.

2. Purpose

This policy applies to all staff employed by the Trust and shall apply to all cases when a death in service occurs.

The purpose of this procedure is to provide clear guidance that needs to be taken within the Trust in relation the individual member of staff, their colleagues and the department in which they have worked and to support all parties affected.

3. Responsibilities

Chief Executive

- To ensure appropriate condolences are expressed at a senior level from the Trust to the next of kin/executor of estate and deceased employee's team.
- Where the death in service occurs in the workplace, to assume overall responsibility for ensuring the appropriate incident procedures are implemented.

Service Manager

- To be responsible for ensuring that key personnel such as the Chief Operating Officer and Director of People are notified of the death in service.
- To have overall responsibility for ensuring that the policy is adhered to and the process runs smoothly. This includes ensuring all calls and correspondence relating to the death in service are dealt with in a confidential and sensitive manner and overseeing the return of personal property and the collection of Trust property from deceased employee's next of kin/executor of estate (see Appendix 3 of this policy for Service Manager's action checklist).

Line Managers

- When a death in service occurs, the deceased employee's immediate line manager must inform:
 - Service Manager
 - Chief Executive
 - Head of Communications
 - Designated HR Advisor
 - Payroll Department
 - Occupational Health

- To ensure their own familiarity with the policy and procedures.
- To treat any concerns raised within the scope of this policy seriously, confidentially and sensitively.
- To liaise with, and seek advice from, HR and other relevant parties on matters related to death in service.

Payroll/Finance Department

- To ensure timely administration of payment of salary and where appropriate pension administration.
- To ensure that all contact/correspondence relating to the death in service are dealt with in a confidential and sensitive manner.
- To liaise with HR and next of kin/executor of estate in relation to the deceased employees final pay and pension arrangements.

Human Resources Department

- To provide support to the Service Manager in the application of the Trust's death in service procedure.
- To ensure deceased employees details are removed from current Trust wide circulation lists (e.g., email) and electronic staff records are updated appropriately.
- To establish whether deceased employee contributes to the NHS pension scheme and, where appropriate inform NHS pension agency of death in service.

Communications/Media Manager

- Where appropriate, to make arrangements for staff obituary, press releases, liaises with external agencies etc.

Head of Quality Governance

- Where the death of service occurs in the workplace, The Head of Quality Governance should inform the Service Manager in conjunction with the Chief Executive and Medical Director and a decision be made as to whether to instigate a Serious Incident investigation.

All of the above

- It is the responsibility of all of the above to liaise with one another during this process to ensure it all elements are dealt with as efficiently and as sensitively as possible.

4. Definitions

RIDDOR

Reporting of Injuries, Diseases and Dangerous Occurrences Regulations 2013. RIDDOR puts duties on employers, the self-employed and people in control of work premises (the Responsible Person) to report certain serious workplace accidents, occupational diseases and specified dangerous occurrences (near misses).

5. Procedure

When a death in service occurs, the deceased employee's immediate line manager must inform:

- Service Manager
- Chief Executive
- Communications/Media Manager
- Designated HR Advisor
- Payroll Department
- Occupational Health

The Service Manager will advise payroll of the death in service in advance of the staff leaver form being completed.

The HR Advisor will confirm and release the next of kin/executor of estate details (in the absence of this information, the emergency contact details).

If there is no next of kin/executor of estate, contact will need to be made with the solicitors who are handling the estate of the deceased for clarity in relation to the payment of pension etc, e.g., has someone been nominated in the will to receive the money. In these circumstances, all information will need to be forwarded to the Trust's Payroll Department, as they will become the point of contact for solicitors to speak with.

The Chief Executive will send a letter of condolence to the next of kin/executor of estate (an example letter is given in Appendix 1). However, careful consideration should be given to the appropriateness and circumstances relevant to the individual's case.

The Service Manager will ensure completion of leaver form and forward to Payroll in a timely manner to close the employment details.

The Service Manager will be responsible for cascading notification of a death in service by email to affected managers and colleagues in a supportive manner and providing details in relation to funeral arrangements and ensures appropriate support is in place for affected colleagues (liaising with Occupational Health).

It is acknowledged that a death of a colleague has a major impact on the team and therefore managers (in conjunction with the Service Manager and Occupational Health) should ensure that appropriate support is put in place to colleagues through this emotional and difficult time.

A second letter should be sent within one week of the first letter to the next of kin/executor of estate from the Service Manager (in liaison with the HR Advisor). The letter will focus on the practical arrangements regarding payment of salary with a request of the executors of the estate. An example of this letter has been given in Appendix 2, however careful consideration should be given to the wording of the letter and the appropriateness of timing.

The Service Manager is responsible for ensuring the sensitive return of personal belongings to the next of kin/executor of estate and arrangements for the return of trust property (e.g., department keys).

6. Completion of Leaver Paperwork

When a death in service occurs, the Service Manager is responsible for completing a leaver form as soon as possible and informing Payroll by telephone and e-mail prior to the leaver form being completed to ensure correct final payments are issued.

The leaver form should include details of any outstanding annual leave owed to the deceased employee.

It is the responsibility of the HR Advisor to ensure that the Payroll/Finance Department are notified of the next of kin/executor of estate and executors of the deceased employee's estate as soon as possible.

The leaver form must be forwarded to the Payroll Department and copy sent to the HR Department.

7. Annual Leave Entitlement

An allowance equivalent to the balance of the annual leave entitlement on the date of death, calculated on a proportionate basis, shall be paid to the employee's next of kin/executor of estate. No deduction should be made from the final salary payment in respect of annual leave taken in excess of entitlement on the date of death.

8. Payment of Final Salary/Pension Arrangements

Payroll/Finance department may suspend payment of salary prior to receipt of completed leaver form, providing they have been informed by the Service Manager.

By law, the Trust may only discuss payment of salary with the next of kin and/or the executors of the deceased employee's estate.

On confirmation of the next of kin/executor of estate, Payroll/Finance Department will calculate the final payment due, and this will be issued by cheque to the next of kin/executor of estate, along with a covering letter.

Where the deceased employee contributed to the NHS Pension Scheme, the Pensions Agency will liaise with the next of kin/executor of estate/executors in relation to the pension administration and paperwork shall be treated as priority. HR will notify the Pensions Agency in the first instance.

9. Death Within the Workplace

A death in service within the workplace is considered a Major Incident and it should be reported immediately to the Senior Manager on-call. The Trust's Serious Incident procedure and investigation should be instigated immediately.

In certain circumstances there may be a need to report a death at work under the Reporting of Injuries, Diseases and Dangerous Occurrences Regulations (RIDDOR) 1995 to the Health and Safety Executive (HSE). The HSE should be informed as soon as possible by one of the two methods where:

"Any person dies as a result of an accident arising out of or in connection with work; (the employer shall) forthwith notify the relevant enforcing authority by the quickest practicable means" Regulation 3 (1) (a) Telephone the Incident Contact centre (during normal office hours) on 0845 300 9923, or Via the internet using the email form on www.hse.gov.uk/riddor

Where there is likely to be a press interest in the death, the Service Manager and appropriate Executive Director will liaise and agree a strategy for dealing with media interest. No information should be given to any external enquirer, and they should be referred to the Communications/Media Manager.

Following the above and once appropriate, the process for Death in Service as per this policy will be applied.

10. Attendance at Deceased Employee's Funeral

In such circumstances, the Trust would wish to show support at a senior level to the next of kin/executor of estate and the deceased employee's colleagues. The Chief Operating Officer and Service Manager, in liaison with the Director of People shall decide on the appropriateness of senior personnel attending the deceased employee's funeral in each individual circumstance.

The Trust gives a commitment to allowing an agreed number of colleagues to attend the deceased employee's funeral of which, these arrangements should be

agreed between the Service Manager and the Departmental Manager according to patient/business needs.

11. Training

There is an expectation that all employees of the Trust are responsible for ensuring their own individual awareness of this policy. However briefing sessions for managers and staff will be made available as necessary.

12. Monitoring Compliance with the Document

Monitoring Compliance					
Process to be used for monitoring e.g. audit	Responsible individual / committee for carrying out monitoring	Frequency of monitoring	Responsible individual / committee for review the results	Responsible individual / committee for developing action plan	Responsible individual / committee for monitoring action plan
Audit	Head of People Processing	Annually	People Committee	Head of People Processing	People Committee

13. References

Reporting of Injuries, Diseases and Dangerous Occurrences Regulations (RIDDOR) 1995, HSE

Appendix 1: Sample Letter of Condolence

PRIVATE & CONFIDENTIAL – ADDRESSEE ONLY

<DATE>
<NAME OF NEXT OF KIN/EXECUTOR OF ESTATE>
<ADDRESS>

Dear <NAME OF NEXT OF KIN/EXECUTOR OF ESTATE>

I write on behalf of Kettering General Hospital NHS Foundation Trust to express my most deep felt sorrow for your recent loss of <EMPLOYEE NAME>. I know that all of <EMPLOYEES NAME> colleagues and <DEPARTMENTAL MANAGER>, would like to convey their deepest sympathies at this difficult time for you and your family.

It is felt inappropriate at this stage to discuss the various administrative details concerning <EMPLOYEES NAME> however I wish to assure you that we will provide support in every way possible. In light of this, and to extend the appropriate privacy during your bereavement, the Trust will contact you in due course outlining these details.

May I take this opportunity to express how liked <EMPLOYEE'S NAME> was by his/her colleagues and was considered a valuable member of the <DEPARTMENT> team.

If there is anything the Trust can do to help you further during this difficult time, please do not hesitate to contact me on <DETAIL HERE>.

Yours sincerely,

CHIEF EXECUTIVE

Appendix 2: Sample Letter Concerning Final Pay Arrangements

PRIVATE & CONFIDENTIAL – ADDRESSEE ONLY

<DATE>

<NAME OF NEXT OF KIN/EXECUTOR OF ESTATE>

<ADDRESS>

Dear <NAME OF NEXT OF KIN/EXECUTOR OF ESTATE>

I was deeply saddened to hear of <EMPLOYEE'S NAME> death. I know that <EMPLOYEE'S NAME> was a dedicated and well respected member of the team and that all <EMPLOYEE'S NAME> colleagues would like to convey their deepest sympathies for you and your family at this sad time.

I apologise for intruding at this sad time but there are a number of administrative matters that do need to be addressed. Obviously we will be doing all that we can to minimise the burden to you at this time. The Trust's Finance Department is completing the necessary paperwork for any monies owing. All cheques will be made payable to the next of kin/executor of estate of <EMPLOYEE'S NAME>.

Please contact me on <CONTACT NUMBER> if there is anything I can further help you with or if there is anything contained within this letter that you wish me to clarify.

Yours sincerely

SERVICE MANAGER

Cc <NAME> - HR Advisor

Appendix 3: Service Manager's Checklist

Please note that that following list is intended to be a formal checklist for Service Managers when dealing with the death of an employee but also reflects the immediate actions required of line managers for their team and arrangements to maintain service delivery where possible.

- Inform Chief Executive of death for issue of letter of condolence to next of kin/executor of estate
- In the event of a death in service within the workplace it should be reported immediately to the Senior Manager on-call and the Trust's Serious Untoward Incident (SUI) procedure and investigation should be instigated.
- Inform colleagues and others (including designated HR Advisor and the Payroll/Finance Department) as appropriate
- Support work colleagues in dealing with distress (in conjunction with Occupational Health)
- Complete leaver paperwork and forward to payroll for processing as soon as possible. This form should include:
 - The last working date and/or end date of sickness absence
 - That this relates to a 'death in service'
 - The date of death
 - The amount of any outstanding annual leave that has been accrued
- Issue letter of condolence to next of kin/executor of estate one week after the Chief Executive's letter (see Appendix 2) and to check that the Chief Executive's letter was sent.
- Obtain details for the funeral arrangements from deceased family representative and enquire if attendance by Trust employees will be welcome.
- Enquire whether sending flowers on behalf of the Trust are acceptable and ensure arrangements are made for the sending of flowers, if appropriate.
- Arrange removal of deceased details from all distribution lists.
- Complete SUI form where appropriate (if employee died at work)
- Ensure that personal items are returned to the family sensitively
- Arrange for collection from the next of kin/executor of estate of any Trust property, equipment, keys, identity badges, SMART cards etc (after discreet interval of time) sensitively